

FORM NO. DPT- 3

Return of deposits

[Pursuant to rule 16 of the Companies
(Acceptance of Deposits) Rules, 2014]



Form Language ☐ English ☐ Hindi

Refer the instruction kit for filing the form.

1. (a) * Corporate Identity Number (CIN)

(b) Global location number (GLN)

2. (a) Name of the company

(b) Registered office address

(c) * email id

3. *Purpose of the Form

- ☐ Onetime Return for disclosure of details of outstanding money or loan received by a company but not considered as deposits in terms of rule 2(1)(c) of the Companies (Acceptance of Deposits) Rules, 2014
- ☐ Return of Deposit
- ☐ Particulars of transactions by a company not considered as deposit as per rule 2 (1) (c) of the Companies (Acceptance of Deposit) Rules, 2014
- ☐ Return of Deposit and Particulars of transactions by a company not considered as deposit

4. Whether the company is

☐ Public company ☐ Private company

5. * Whether the company is a government company

☐ Yes ☐ No

6. Objects of the company

7. * (b) Date of last closing of accounts

8. * Net Worth as per the latest audited balance sheet preceding the date of the return-

S.No.	Particulars	Amount (in Rupees)
(a) (i)	Paid up share capital	
(ii)	Free reserves	
(iii)	Securities Premium Account	
(b) (i)	Accumulated Loss	
(ii)	Balance of deferred revenue expenditure	
(iii)	Accumulated unprovided depreciation	
(iv)	Miscellaneous expense and preliminary expenses	
(v)	Other intangible assests	
(c)	Net worth (a) - (b)	

13. Particulars of charge

(a) Date of entering into trust deed

(b) Name of the trustee

(c) Short particulars of the property on which charge is created for securing depositors

(d) Value of the property

15. *Particulars of receipt of money or loan by a company but not considered as deposits, at the end of financial year, in terms of clause (c) of sub-rule 1 of rule 2 of the Companies (Acceptance of Deposits) Rules,2014

	Amount
(a) Any amount received from -	
(i) the Central Government; or	
(ii) a State Government; or any amount received from any other source whose repayment is guaranteed by the Central Government or State Government; or	
(iii) any amount received from a local authority; or	
(iv) any amount received from statutory authority constituted under an Act of Parliament or a State Legislature.	

(b) Any amount received from - (i) Foreign Governments; or (ii) Foreign or international banks; (iii) Multilateral financial institutions; (iv) Foreign Governments owned development financial institutions; (v) Foreign export credit agencies; (vi) Foreign collaborators; (vii) Foreign body corporates; (viii) Foreign citizens; (ix) Foreign authorities or; (x) Persons residents outside India subject to the provisions of Foreign Exchange Management Act, 1999 (42 of 1999).	
(c) Any amount received as - (i) A loan or facility from any banking company; or (ii) From the state Bank of India or any of its subsidiary banks; or (iii) From a banking institution notified by the Central Government under section 51 of the Banking Regulation Act, 1949 (10 of 1949); or (iv) A corresponding new bank as defined in clause (d) of section 2 of the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1980 (40 of 1980); or (v) From a cooperative bank as defined in clause (b-ii) of section 2 of the Reserve Bank of India Act, 1934 (2 of 1934).	
(d) Any amount received as loan or financial assistance from - (i) Public Financial Institutions notified by the Central Government; or (ii) Any regional financial institutions; or (iii) Insurance companies; or (iv) Scheduled Banks as defined in the Reserve Bank of India Act, 1934 (2 of 1934).	

(e) Any amount received against issue of commercial paper or any other instruments issued in accordance with the guidelines or notification issued by the Reserve Bank of India.	
(f) Any amount received by the company from any other company	
(g) Any amount received and held pursuant to an offer made in accordance with the provisions of the Act towards subscription to any securities including share application money or advance towards allotment of securities pending allotment, so long as such amount is appropriated only against the amount due on allotment of securities applied for.	
(h) Any amount received from a person who, at the time of the receipt of the amount, was a director of the company or the relative of the director of a private company.	
(i) (A) Any amount raised by the issue of bonds or debentures secured by a first charge or a charge ranking pari passu with the first charge on any assets referred to in Schedule III of the Act excluding intangible assets of the company; or (B) bonds or debentures compulsorily convertible into shares of the company within ten years.	
(j) Any amount raised by the issue of non-convertible debentures not constituting a charge on the assets of the company and listed on recognized stock exchange as per applicable regulations made by Securities and Exchange Board of India.	
(k) Any amount received from an employee of the company not exceeding his annual salary under a contract of employment with the company in the nature of non-interest bearing security deposit.	
(l) Any non-interest bearing amount received and held in trust.	

(m) Any amount received in course of, or for the purposes of the business of the company- (i) As an advance for supply of goods or provision of services accounted for in any manner whatsoever provided that such advance is appropriated against supply of goods or provision of services within a period of three hundred and sixty-five days from the date of acceptance of such advance. (ii) As advance accounted for in any manner whatsoever, received in connection with consideration for immovable property under an agreement or arrangement, provided that such advance is adjusted against such property in accordance with the terms of agreement or arrangement. (iii) As security deposit for performance of the contract of supply of goods or provision of services. (iv) As advance received under long term projects for supply of capital goods except those covered under item (b) of sub-clause (xii) clause (c) of sub-rule (1) of rule (2) of the Companies (Acceptance of Deposits) Rules, 2014. (v) As an advance towards consideration for providing future services in the form of a warranty or maintenance contract as per written agreement, if the period for providing such services does not exceed the period prevalent as per common business practice or five years, from the date of acceptance of such service whichever is less. (vi) As advance received and allowed by any sectoral regulator or in accordance with directions of Central or State Government. (vii) As an advance for subscription towards publication, whether in print or electronic to be adjusted against receipt of such publications.	
(n) Any amount brought in by promoters of the company by way of unsecured loans in pursuance of the stipulation of any lending financial institution or a bank.	
(o) Any amount received by a Nidhi company in accordance with the rules made under section 406 of the Act.	
(p) Any amount received by way of subscription in respect of chit under the Chit Funds Act, 1982(4 of 1982).	

(q) Any amount received by company under any collective Investment scheme in compliance with regulations framed by the Securities and Exchange Board of India.	
(r) Any amount of twenty-five lakh rupees or more received by a startup company, by way of convertible note (convertible into equity shares or repayable within a period not exceeding five years from the date of issue) in a single tranche, from a person.	
(s) Any amount received by a company from - (i) Alternate Investment Funds; (ii) Domestic venture Capital Funds; (iii) Infrastructure Investments Trusts; (iv) Real Estate Investment Trusts; (v) Mutual Funds registered with the Securities and Exchange Board of India.	

16. Credit Rating obtained:

(a) From (Name of the agency)

(b) Rating

(c) Date

Attachments

- Auditor's certificate
- Optional attachment, if any.

List of attachments

Declaration

I am authorized by the Board of Directors of the Company vide resolution number dated to sign this form and declare that all the requirements of Companies Act, 2013 and the rules made thereunder in respect of the subject matter of this form and matters incidental thereto have been complied with. I also declare that all the information given herein above is true, correct and complete including the attachments to this form and nothing material has been suppressed.

*To be digitally signed by

* Designation

*Director identification number of the director; or DIN or PAN
of the manager or CEO or CFO; or Membership number of the
Company secretary

Note: Attention is also drawn to provisions of Section 448 and 449 which provide for punishment for false statement and false evidence.

For office use only:

eForm Service Request number

eForm Filing Date

(DD/MM/YYYY)

This e-Form is hereby registered

Digital signature of the authorizing officer

Date of signing

(DD/MM/YYYY)

OR

This eForm has been taken on file maintained by the Registrar of Companies through electronic mode and on the basis of statement of correctness given by the company